

**CHAPTER 37.**

An Act to extend the provisions of the War Damage Act, 1941, relating to payments in respect of war damage under Part I of that Act to damage occurring after the thirty-first day of August, nineteen hundred and forty-one. [29th July 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The provisions of the War Damage Act, 1941, relating to payments under Part I thereof in respect of war damage to land (including the provisions of section forty-one thereof relating to payments in respect of damage to highways under a scheme made under that section) shall have effect in relation to damage occurring during the period beginning with the first day of September, nineteen hundred and forty-one and ending with the thirty-first day of August, nineteen hundred and forty-two (in this Act referred to as "the second risk period"), as they have effect in relation to damage occurring during the risk period defined in that Act (in this Act referred to as "the first risk period").

Extension of
payment
provisions for
further risk
period.

4 & 5 Geo. 6.
c. 12.

(2) The provisions of the said Act relating to contributions towards the expense of making payments under Part I of the said Act in respect of war damage shall not by virtue of this Act extend to the payments to be made thereunder in respect of damage occurring during the second risk period, but such contributions as Parliament may hereafter determine shall be

made towards the expense of making the payments to be so made.

(3) The consequential provisions set out in the Schedule to this Act shall have effect.

Short title,
citation and
construction.

2.—(1) This Act may be cited as the War Damage (Extension of Risk Period) Act, 1941.

(2) This Act shall be construed as one with the War Damage Act, 1941, and this Act and that Act may be cited together as the War Damage Acts, 1941.

SCHEDULE.

Section 1.

CONSEQUENTIAL PROVISIONS.

Provisions for extending effect of payment provisions.

1. For the purposes of the provisions of the War Damage Act, 1941, and of the regulations made thereunder, relating to payments under Part I thereof in respect of war damage to land—

- (a) the references to the risk period in sections two, seventeen, and forty-one of the said Act, and in the regulations made by the Treasury under the said Act before the passing of this Act, and
- (b) the references to the period beginning with the twenty-fourth day of August, nineteen hundred and thirty-nine and ending with the thirty-first day of August, nineteen hundred and forty-one, in sections forty-four and forty-five of the said Act,

shall be construed as references to the period comprising both the first risk period or the said period beginning with the twenty-fourth day of August, nineteen hundred and thirty-nine, as the case may be, and the second risk period.

Provisions for preserving existing effect of contribution provisions.

2. The following references to payments shall be construed as limited to payments in respect of damage occurring during the first risk period, that is to say, the references in sections eighteen and twenty-two of the said Act to payments under Part I of the said Act in respect of war damage, the reference in subsection (2) of section forty-one of the said Act to the expense of making payments in respect of war damage to highways, and the references in subsection (4) of that section to payments made under the said subsection (2) and to payments in respect of war damage.

3. The reference in subsection (5) of section twenty-two of the said Act to sums which are discharged by a credit in account in lieu of being paid by the Commission shall be construed as limited to sums so discharged representing payments in respect of damage occurring during the first risk period.

4. The references in sections eighteen to thirty-six and forty-four of the said Act to the risk period, and, for the purposes of the provisions of the said Act relating to contributions, the references in sections forty-four and forty-five thereof to the period mentioned in subparagraph (b) of paragraph 1 of this Schedule, shall continue to be construed as references to the first risk period or to the period mentioned in the said paragraph (b), as the case may be.